RICHARD MOYO-MAJWABU
(In his capacity as executor of estate late Siphiwe Dube DRB 966/20)

Versus

OLIVER MASOMERA
(In his capacity as the executor dative in the Estate Late Clement George Dube DRB 45/07 and 1560/22)

AND

VUSUMUZI DUBE

AND

THE MASTER OF THE HIGH COURT

AND

THE REGISTRAR OF DEEDS & COMPANIES

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 16 FEBRUARY, 24 JUNE AND 19 AUGUST 2026

Opposed Application

P. Dube, for the applicant
B. Maruva, for the 1st respondent
L. Rwizi, for the 2nd respondent
No appearance for the 3rd and 4th respondents

KABASA J: This is an application for the confirmation of a provisional order which was granted on 27 October 2023.

The applicant seeks confirmation and a final order in the following terms:-

"1. The appointment of the 1st respondent as the executor of dative (sic) of estate late Clement George Dube DRB 45/07 and DRB 1560/23 be and is hereby set aside.

2. The consent granted by the Master of the High Court on the 5th of June 2023 for the sale of the two immovable properties with the address number 57 Ullswater Drive, Morningside, Bulawayo and number 705 Mahatshula Bulawayo, be and is hereby set aside.

3. All actions taken by the 1st respondent herein pursuant to his purported appointment as executor of estate late Clement George Dube, DRB 45/07 and DRB 1560/23, be and are hereby declared null and void *ab initio* and are of no legal force and effect.

4. The applicant is hereby appointed executor testamentary of estate late Clement George Dube DRB 45/07 and DRB 1560/23."

The application is opposed by the 1st and 2nd respondents whilst the 3rd and 4th respondents took no part in the proceedings. They are therefore taken to have decided to abide by the court's decision.

The factual background of the matter is largely common cause. The background is this:-

I will refer to Clement and Siphiwe by their first names to make it easy to follow the factual matrix. Clement and Siphiwe were married and each one brought their own children from previous relationships into the marriage. In 1995 the couple executed a joint Will whose contents were that whoever survived the other by over 30 days would be the executor of the other's estate and the survivor would inherit the entire estate of the first to die. The only condition was that the survivor would maintain the parties' children until the children attained 18 or became self-supporting, whichever occurred first. The 2nd respondent was one of the 7 children. Clement died in 2006 and Siphiwe died 14 years later. She had commenced the administration of Clement's estate but died before completing the process. The applicant was appointed executor of her estate. The 2nd respondent initiated the appointment of the 1st respondent who was then issued with Letters of Administration for the estate of the late Clement. The 2nd respondent proceeded to seek and obtained a S120 Authority to sell the 2 immovable properties aforestated. The applicant, on learning of the joint Will brought the urgent chamber application whose interim relief interdicted the sale of the property and the alienation of any other property which was included in the joint Will.

The applicant's argument is that the joint Will made Siphiwe the sole beneficiary of Clement's estate. The fact that she died without completing the administration process did not change the contents of the Will. Vusumuzi, the 2nd respondent was not a beneficiary of Clement's estate and so could not have initiated the appointment of an executor following

Siphiwe's death. The Will was accepted by the 3rd respondent. Siphiwe bequeathed her property to her children and none of them participated in the process which saw 1st respondent being appointed executor dative of Clement's estate. The applicant was also not part of that process. The Master was aware of the contents of the joint Will and so the appointment of 1st respondent was irregular, so was the issuance of the S120 Authority.

The order sought, so the argument goes, is meant to nullify that which was irregularly done and with such nullification the appointment of the applicant as executor of Clement's estate as such would be convenient.

In opposing the confirmation of the provisional order, the 1st and 2nd respondents took points *in limine*. These are:-

a) Mis-citation of the 1st respondent.

b) The failure to cite the rule under which the application is premised.

c) The adoption of a wrong procedure in seeking the removal of first respondent.

d) The availability of an alternative remedy.

e) Material disputes of fact.

I however asked the parties to address me on the preliminary points and the merits on the understanding that should the points *in limine* be dismissed, the parties would not have to come back and argue on the merits.

Counsel for the 1st and 2nd respondents' submissions on the merits were essentially the same such that 2nd respondent's counsel associated himself with most of the 1st respondent's counsel's submissions.

The contention by both counsel was that the assets of Clement's estate must be administered in his estate. The beneficiary to the mining claims which form part of Clement's estate is the 2nd respondent. The appointment of the 1st respondent was done by the 3rd respondent and that decision cannot be vacated without hearing the 3rd respondent.

There was nothing illegal in the appointment of the 1st respondent to warrant setting such aside. The executor was subsequently authorized to dispose of the property and so acted on the basis of such authority.

A declaratur ought not to be granted where there are available domestic remedies. The applicant could have utilized s116 and s117 of the Administration of Estates Act [Chapter 6:01]. The application is therefore a dubious one, lacking clarity on whether it is a review or a declaratur. It must be unmasked so its true identity is revealed.

The executor of Clement's estate died and so one had to be appointed. The applicant cannot ask the court to appoint him executor of Clement's estate.

There being nothing illegal about the appointment of the 1st respondent, the application lacks merit and must be dismissed, with punitive costs, so the argument went.

It is trite that where preliminary points are raised, the court should decide on these first before turning to the merits *Heywood Investments (Pvt) ltd t/a GDC Hauliers* v *Zakeo* S 3213)

I propose to deal with the points *in limine* but not necessarily in the order they were raised.

Citation of the 1st respondent

The respondents relied on the decision in *Master of the High Court* v *Moyo & Ors* where the court noted that it was preferable to cite an executor in her/his personal capacity rather than in his/her representative capacity.

What is important to note however is that the court did not pronounce the citation as fatal.

I am persuaded by counsel for the applicant's argument that the executor is not being called upon to do anything as the issue relates to the irregularity of his appointment. Counsel cited the case of *McNamee & Another* v *Executors Estate McNamee* 1913 NDP 428 where the court had this to say:-

> "It will be seen that the defendants, as executors and trustees, are not called upon in any way to restate or modify their accounts. The conclusions of the summons are all personal to themselves as individuals – removal from office, forfeiture and refund of commissions and fees. But as the action is laid out against them in their representative capacity it is an action against the estate and not against the individual who alone can satisfy the judgment."

In casu the executor is not being called upon to do anything and the applicant's issue is with the manner in which he was appointed. Whilst the applicant made reference to impropriety

on the part of the executor and the 2nd respondent, the thrust of the argument rests on how the appointment was done. I therefore do not view it as fatal that the 1st respondent was cited in his representative capacity. The applicant's case cannot be defeated merely on the basis of such citation. The issue is not so much the incompetence or fraudulent conduct of the 1st respondent but the flawed process which made him the executor of Clement's estate. I am therefore of the considered view that citing the 1st respondent in that representative capacity speaks to the root of the applicant's disgruntlement.

Had the 1st respondent been accused of fraud or some such misdemeanor in the administration of the estate, the argument that he ought to have been cited in his personal capacity would gain some traction. It does not in this instant case.

Consequently the point *in limine* is dismissed.

2. **Failure to state the rule under which application was brought**

It is my considered view that it is not so much the rule but what the application is about that matters. This, to my mind, is placing form over substance.

The point *in limine* equally lacks merit and also stands to be dismissed.

3. **Material Disputes of Fact**

In *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi* HH 92-09 MAKARAU J (as she then was) had this to say on what amounts to material disputes of facts: -

> "A material dispute of fact arises when such material facts put by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

I have already stated the facts of this matter. They are largely common cause. There is no dispute that the 2nd respondent was aggrieved by the fact that the joint Will benefited the children of Siphiwe as all the children would only have been beneficiaries in equal shares had Clement and Siphiwe died within 30 days of each other. Since all Clement's assets were bequeathed to Siphiwe who in turn bequeathed her property to her children, the 2nd respondent stood to lose out. After Siphiwe died before finalizing the estate 2nd respondent initiated the appointment of the 1st respondent. 2nd respondent obtained the S120 Authority to sell the immovable property alluded to elsewhere in this judgment.

What then are the disputes of fact incapable of resolution on the papers? The issue of whether the applicant should have proceeded by way of review and whether he should be appointed executor of Clement's estate are not disputes of fact. There are no such disputes. The point *in limine* equally fails.

4. **Adoption of Wrong Procedure**

The respondent's argument is that the removal of an executor is provided for in s116 and s117 of the Act. Section 116 empowers the Master to inquire into the failure of an executor to perform his/her functions satisfactorily and section 117 empowers the Master to seek an executor's removal when it has been shown that he/she has failed to discharge his duties satisfactorily.

In casu, it is the Master's decision to appoint the executor and the procedure followed that is in issue. The 2nd respondent is not a beneficiary of the estate. He appears to labour from a misapprehension that he is a beneficiary. His father left his entire estate to the surviving spouse. One Moses was to be appointed executor had Clement and Siphiwe died within 30 days of each other. There is absolutely no basis for the 2nd respondent to claim that he is a beneficiary who could engage the Master for the appointment of an executor of Clement's estate after Siphiwe died without finalising the winding up of Clement's estate. Siphiwe's death did not change the contents of the joint Will and such Will left nothing to the 2nd respondent. Clement bequeathed his entire property to Siphiwe. As was articulated by MALABA CJ in *Chigwada v Chigwada & 2 Ors* 2020 (2) ZLR 1353 (S), freedom of testation allows an individual to bequeath their property to whomsoever they wish. Sad as this state of affairs undoubtedly is, it is however the reality.

It follows therefore that the 2nd respondent's conduct and the Master's actions at the behest of the 2nd respondent are not legally tenable. Put differently and bluntly, the 2nd respondent had no business getting an executor appointed for Clement's estate and getting a s120 Authority authorizing the sale of property which was to all intents and purposes Siphiwe's as per the provisions of the joint Will.

That being so, the Master could not possibly utilize sections 116 and s117. Equally the applicant could not utilize s117 which specifically states that:-

> "117(1) This section does not deprive any interested party of the right under common law to initiate action for the removal of an executor, tutor, or curator on the ground that his or her continuance in office is prejudicial to the interests of the estate in respect of which the executor, tutor or curator was appointed."
>
> This is so because the applicant seeks to vacate that which was not done procedurally.

Granted a procedural irregularity is attacked by way of review. (*Liberty Life Association of Africa* v *Kachelhoffer* 2001(3) SA 1094, *Krumm* v *The Master* 1989 (3) SA 944). I however am persuaded by counsel for the applicant's argument that the application seeks to declare the nullity of what was done in appointing the 1st respondent as executor. A nullity ought to be declared so and I am of the considered view that insisting on a review in the circumstances of this case is seeking to elevate technicalities over the interests of justice.

This is not a simple matter of procedure not having been followed but a glaring failure to do that which the facts of the matter demanded. The 3rd respondent had the joint Will and such Will was very clear on the beneficiaries. An executor could only be appointed in the absence of the executrix testamentary. The 3rd respondent was therefore aware that Siphiwe had died without concluding the winding up of Clement's estate.

Whilst I do not agree that the fact that Siphiwe was an executrix testamentary it follows that upon her demise the executor of her estate was also to be the executor testamentary of Clement's estate, the point is the executor of Siphiwe's estate as well as the beneficiaries of her estate, which estate was to get all the assets in Clement's estate, ought to have participated in the edict meeting which appointed the 1st respondent and not the 2nd respondent who was not a beneficiary. These facts, in my view, are such that the interests of justice cry out for the nullification of the appointment of the 1st respondent.

It is therefore not so much a question of the availability of a report from the Master but the uncontroverted facts which speak for themselves. The Master could have participated in the matter had he chosen to as the application was served on him but chose not to. The court could also have asked for a report from the Master but chose not to as the facts of the matter were clear and needed no clarification.

It is for these reasons that I hold that the point *in limine* on wrong procedure seeks to elevate technicalities over the interests of justice. The point is therefore not properly taken and is also dismissed.

I must say in dealing with these points *in limine* the merits of the application were inevitably traversed.

The applicant seeks the confirmation of a provisional order which confirmation nullifies the appointment of the 1st respondent, the setting aside of the S120 Authority and all actions undertaken by the 1st respondent pursuant to his appointment as executor. The 2nd respondent's attempts to sue for maintenance on his own behalf and on behalf of the estates of his 2 deceased siblings was a manifestation of his unhappiness at the consequences of the joint Will which effectively left him out. The handwritten scribbled notes which birthed the appointment of the 1st respondent says it all:

"Cars at the mine, the deceased had a Will that was confirmed by the Master.

Issues- Mr. Vusumuzi said upon the death of S (surviving) spouse all assets benefited the children of the (S) surviving spouse.

2) Estate was not finalised by the previous executor and he has to attend to the same.

Appointment:

Mr. Oliver Masomera was appointed as requested by Mr. Vusumuzi who said he is not always in Zimbabwe as he goes to Botswana frequently for work"

Why the 2nd respondent took it upon himself to 'attend to the same' and single-handedly proposed the 1st respondent as the executor, in light of the contents of the joint Will, which was in Clement's file, is what is at the core of the applicant's displeasure. There really was no edict meeting and the beneficiaries took no part in the 'process' which saw the appointment of 1st respondent. This was essentially a non-event and the applicant seeks to have it declared so.

The 1st respondent appeared to have taken issue with the fact that the provisional order which is sought to be confirmed was granted without hearing the other parties. The grant of the provisional order must be understood from the foregoing background. The High Court rules are clear and r60(9) provides that:

"Where in an application for a provisional order the judge is satisfied that the papers establish a prima facie case. He or she shall grant a provisional order either in terms of the draft filed or as varied."

A case had therefore been made for the granting of the provisional order on the papers. The requirements had been met (See *Masango& Anor v Minister of Primary & Secondary Education NO & Ors* HMA7-17). The confirmation seeks to vacate that which ought not to have occurred in the first place. The fact that Siphiwe's Will had also been lodged with the Master was not controverted. Siphiwe had bequeathed property, which was now essentially hers as per the joint Will, to her own beneficiaries, beneficiaries who exclude the 2nd respondent. There was therefore everything wrong with the Master appointing the 1st respondent and issuing a s120 Authority authorizing the sale of property which was bequeathed by Siphiwe to beneficiaries who were not consulted in the process sought to be vacated by the applicant.

The joint Will effectively gave Siphiwe all of Clement's property. As stated earlier, her demise did not change this fact. The executor who is to complete what Siphiwe was unable to do, simply has to transfer the property from Clement's estate to Siphiwe's estate.

I am therefore persuaded by counsel for the applicant's argument that the whole process was a nullity and deserving of being declared so, not necessarily by way of review but through the confirmation of the provisional order.

That said I am of the view that a case has been made for the confirmation of the provisional order. However as regards the appointment of the applicant as executor of Clement's estate, such appointment is not within the province of this court. There is no justification to usurp the powers of the Master in the appointing of an executor. It may be convenient for the applicant to be appointed as the executor of Clement's estate, given the fact that all that is in that estate is to be transferred to Siphiwe's estate, but such appointment is not a given. The Master has to appoint the executor with the participation of the beneficiaries of Siphiwe's estate as well as the applicant who is the executor of Siphiwe's estate. Should they agree on his appointment then he will be so appointed but not by this court.

As regards costs, I am of the view that it was more of a misapprehension of the issues rather than an intransigent attitude which informed the opposition by the 1st and 2nd

respondents. However, after the applicant had made his concerns known, the 1st respondent's attitude of threatening to sell more property from Clement's estate in order to meet litigation costs is to be frowned at. He ought to have appreciated that the 2nd respondent was not a beneficiary of either Clement or Siphiwe's estate and therefore had no business driving the process that saw him being appointed executor of Clement's estate. Had he seen reason the litigation could have been avoided. It is for this reason that I hold the view that 1st respondent should not utilize Clement's estate to meet the costs in this matter. He should pay the costs personally.

That said, the matter exercised my mind to such a degree that it cannot be said the opposition was an abuse of the court, deserving of punitive costs.

The 2nd respondent's opposition may have been ill-advised but the fault would lie with counsel not the litigant.

I therefore am averse to award punitive costs or costs *de bonis propriis* against counsel for the respondents, as prayed for by the applicant.

In the result, I make the following order.

1. The appointment of the 1st respondent as the executor dative of estate late Clement George Dube DRB 45/07 and DRB 1560/23 be and is hereby set aside.

2. The consent granted by the Master of the High Court on the 5th of June 2023 for the sale of the two immovable properties with the addresses 577 Ullswater Drive Morningside Bulawayo and 705 Mahatshula Bulawayo be and is hereby set aside.

3. All the actions taken by the 1st respondent herein pursuant to his purported appointment as executor of estate late Clement George Dube be and are hereby declared null and void and are of no legal force and effect.

4. The Master shall convene an edict meeting for the appointment of an executor for the estate late Clement George Dube within 30 days of this order.

5. The 1st and 2nd respondents shall pay the costs, jointly and severally, the one paying the other to be absolved. Such costs shall be paid at party and party scale.

James, Moyo-Majwabu and Nyoni, applicant's legal practitioners
Zuze Law Chambers, 1st respondent's legal practitioners
Hamunakwadi and Nyandoro Law Chambers, 2nd respondent's legal practitioners